



Reconciliation Blanket for Modern Treatymaking in British Columbia

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LAW 353D 001: Aboriginal and Treaty Rights

Professor Michael Jackson

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Project Background

Professor Jackson's overview of the processes through which colonial governments asserted or acquired control over Indigenous peoples' lands discusses the significance of wampum in the early relationships and treaty diplomacy between colonists and Indigenous peoples, particularly those living in the region of the Great Lakes such as the Haudenosaunee (Iroquois Confederacy).¹ Wampum was a medium of exchange,² and wampum beads were crafted into intricate patterns that carried meaning and could be used to record laws, events, and relationships.³ Wampum was instrumental for negotiators who needed to know their significance for diplomatic purposes, including the meaning of different coloured beads and motifs.⁴ Individual representatives of colonial governments in the 17th and 18th centuries recognized the significance of wampum and the way in which it would be used to bind sides of a relationship or parties of an agreement together while recognizing the separation of settler and Indigenous societies.⁵ One instance of such recognition was the offering of the Covenant Chain Belts to the Anishinaabeg during the Treaty of Niagara negotiations in 1764, which bound the treaty-making parties in the promise of an eternal alliance of friendship and respect.⁶ Something that stood out to me while reading these descriptions of wampum were the ways in which both colonial governments and civilians adopted wampum for communicating with Indigenous peoples and for their own use – for example, some settlers would experiment with the form of wampum belts by incorporating non-Indigenous designs.⁷

This adoption of an Indigenous medium as a method of strengthening the relationships between settlers and Indigenous peoples, especially within the treaty-making context, led me to wonder what a modern form of wampum might look like in the context of modern day treaties between First Nations and the federal and provincial governments in Canada. In particular, as a settler living in what is now known as British Columbia, I wanted to make something that could represent the relationships between First Nations and settler governments in British Columbia engaging in modern treaty-making, as something that is an ongoing, reciprocal process that is not purely contractual. Given the historical and contemporary treatment of Indigenous peoples by federal, provincial, and municipal governments, the concept of modern governments offering wampum or something similar is not enough to demonstrate their commitments and promises to uphold treaty Nations'

¹ Michael Jackson, *The Historical Arch of the Argument in Delgamuukw*, prepared for students in the Aboriginal and Treaty Rights Litigation Seminar, at 17, 22.

² *Ibid* at 17.

³ *Ibid* at 22.

⁴ *Ibid* at 33-4.

⁵ *Ibid* at 24, 52.

⁶ *Ibid* at 49-52.

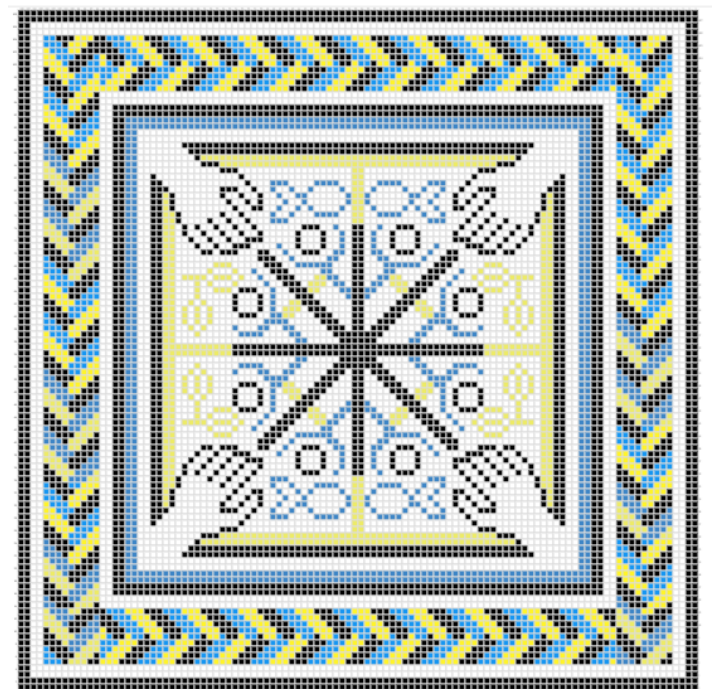
⁷ *Ibid* at 35.

rights. However, as a symbolic gesture it could be something meaningful and indicate an amount of respect for Indigenous laws that take a different form from Western notions of what constitutes ‘law.’

While my initial idea was to design a wampum belt that would incorporate Indigenous and non-Indigenous designs, I considered that it would be inappropriate to dissociate wampum from its specific context and significance for Indigenous communities around the Great Lakes. Additionally, wampum is not something used by First Nations in British Columbia, and so the medium would not have the same significance for communities in British Columbia as it would for contemporary Anishinaabeg or Haudenosaunee people. As an alternative, I began to think about whether another medium might be more appropriate for such a project, but which could still provide enough of a canvas upon which I would be able to symbolize the promises and relationship-building efforts that I wanted to represent. I considered button blankets and the ceremonial significance that they have for many communities along the West Coast, but I did not want to use that exact medium as making them is not a practice that has been shared with me. I did however draw inspiration from button blankets in terms of the general idea of making an important blanket. I also settled on crocheting the blanket so that I would be able to incorporate any designs as colour work, and because I feel that crocheting (like knitting) sits at an interesting intersection of settler and Indigenous mediums; while being a settler craft it is also a process of weaving, which is significant in many Indigenous cultures. I will discuss the importance of weaving as I describe the elements of the blanket’s design. My design is also meant to be general, rather than represent what could be offered to a specific First Nation; an actual reconciliation blanket would need to reflect the specific values and culture of the Nation it was being presented to.

Process, Progress, and Design

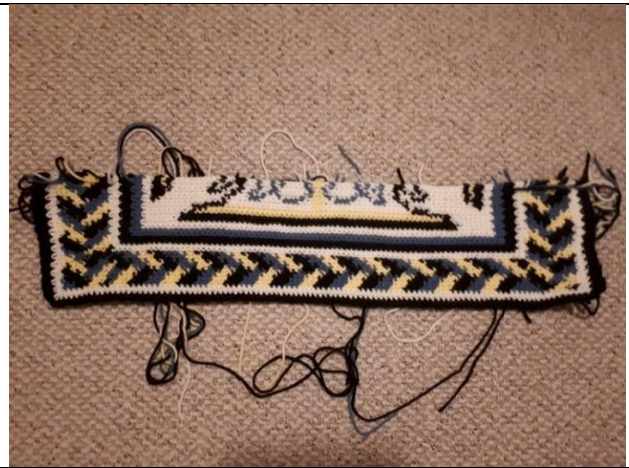
I began to design the blanket in early April 2021 using online design software (right). First, I researched some of the designs and motifs used in public-facing materials published by the Nisga’a and Tsawwassen First Nations, two modern treaty Nations in British Columbia. While I contacted the two Nations to ask about incorporating some of their imagery into my design, I did not receive responses before I needed to begin working on my project, and so I did not incorporate any of their imagery without their consent. Instead, I incorporated general colour schemes and ideas from across a variety of West



Coast First Nations, rather than specific shapes and imagery, and I developed my own designs for representing the different concepts that I wanted to incorporate into the blanket. Below are photos that show the progress I made on the blanket throughout the month. The final dimensions were 23" by 27", which is not the exact square shape that I had intended to represent the equal sides of an agreement (I learned that there is some vertical compression that comes from crocheting), but overall I was pleased with the result.



April 10, 2021



April 14, 2021



April 17, 2021



April 20, 2021



April 23, 2021

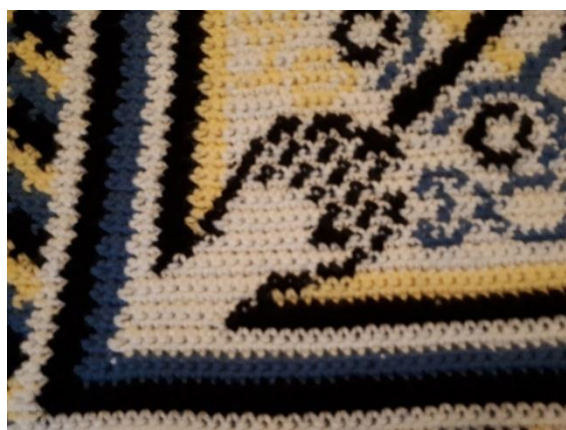


April 25, 2021

As mentioned above, weaving is a significant element that I wanted to reflect on and incorporate into the blanket. I drew a lot of inspiration from Terri-Lynn Williams-Davidson's piece about the interaction of Haida laws to achieve respectful co-existence in the process of reconciliation, in which she speaks about weaving, relationships, and the strength of Haida communities.⁸ She writes about the process of reconciliation being "embodied within Haida weavers' knowledge of traditional robes worn by Haida Chiefs and other Chiefs of the Pacific Northwest Coast," like the Chilkat blanket.⁹ In contrast to the two-row imagery used in early treaties (i.e. wampum belts), she describes the borders of the Chilkat blanket and the manner in which they are woven as a "tangible representation of weaving together paths of co-existence" that allow "two legal traditions to interlock to create lasting strength for respectful co-existence."¹⁰ With regard to these characteristics of weaving, it felt important to incorporate both the practice and imagery of weaving into the blanket. I also drew inspiration from the Haida Chilkat blanket for the colour scheme of my blanket: black, white, yellow, and blue. As can be seen in this detail of my blanket (right), I designed it to be bordered on all sides by a **braid** to represent 'weaving.' It was challenging to incorporate the braid through



crochet due to the complex colour changes and coordination of different pieces of yarn woven together, despite not actually being braided together. The three colours represent the three levels of government involved in reconciliatory and treaty-making efforts: federal, provincial, and First Nations governments. The braiding and weaving of the colours together, and thus the respectful co-existence between the parties, is the context in which the other elements of treaty-making and reconciliation are situated.



I will go through each of the design elements of the middle of the blanket in turn. First the **hands**. The four hands of equal sizes in each of the corners of the middle design represent the human element of treaty-making in terms of communities and individuals and their relationships, in contrast to the braids representing governments as larger, more abstract concepts. The hands are reaching towards the middle as a symbol of helping one another and fostering

⁸ Terri-Lynn Williams Davidson, "Weaving Together Our Future: The Interaction of Haida Laws to Achieve Respectful Co-Existence" (2012) Indigenous Legal Orders and the Common Law, Continuing Legal Education Society of British Columbia 6.2.1.

⁹ *Ibid* at 6.2.9.

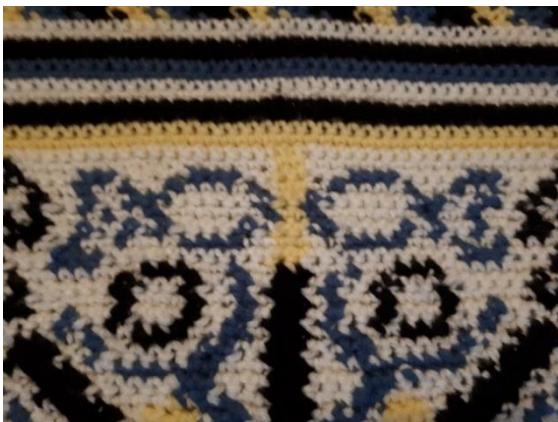
¹⁰ *Ibid* at 6.2.10.

connection, but they are also far away enough from one another to symbolize a respectful distance that does not infringe on the others' rights, jurisdiction, and sovereignty.

The **black lines** in the middle of the blanket represent roots and trees. In her piece, Williams-Davidson reflects on a speech by her paternal grandfather that "created the roots" for the formation of the Council of the Haida Nation, in which he referenced "the strength that trees gain from their neighbours and their intertwined roots," that is, from working together.¹¹ I felt that the imagery of trees and roots was important not only to give effect to this principle of community-based strength, but



also as a way to represent the literal trees and forests that are important to First Nations communities across B.C. The **blue lines** in between and stemming from the roots/tree represent water, rivers, the ocean, and other bodies of water and their significance for Indigenous peoples and economies, as well as the upholding of governments' commitments to climate action and to protecting bodies of water and their sources.



The next elements of the blanket represent specific Aboriginal rights that have been recognized in treaty-making processes (and through section 35 litigation). The four **blue fish** shapes represent fishing rights, food sovereignty for Indigenous peoples, and the honour of the Crown to conduct itself in a manner that avoids infringing upon or jeopardizing those rights. The eight **black circles** in between the roots/branches of the middle tree represent hunting rights and title. In researching

different elements that could potentially be incorporated into the blanket, I came across the Nisga'a Ownership Statement, entitled 'Lock, Stock, and Barrel.' The title came from the words of hereditary chief James Gosnell who, when asked by Prime Minister Pierre Trudeau what Aboriginal title meant, replied that Aboriginal Peoples in Canada own the land "lock, stock and barrel."¹² I contacted the Nisga'a Nation about representing this phrase using the imagery of a gun or rifle,¹³ but not receiving a response I still wanted to represent Aboriginal hunting

¹¹ *Ibid* at 6.2.3.

¹² H. Mitchel Stevens, "Lock, Stock and Barrel: Nisga'a Ownership Statement" online: *Nisga'a Lisims Government* <<https://www.nisgaanation.ca/lock-stock-and-barrel-nisga-a-ownership-statement>>.

¹³ I was informed by a class colleague that the Nisga'a and Tsawwassen Nations are very busy at the moment, and so there is a chance I may receive responses from the Nations at some point after I have submitted this assignment.

rights and the spirit of Mr. Gosnell's statement in some way, therefore I chose a circle to represent the barrel of a gun. I also see it as a rock or stone that represents title to the land.

The **yellow leaves** did not turn out as clearly in the design as I had intended (see my digital mock-up on page 3), however they represent the land and the changing of seasons. The changing of seasons itself is a process that suggests cycles of reflection and renewal, emphasizing the constant renewal and dynamic nature of the relationship between Indigenous peoples and the colonial governments. It also emphasizes that the governments' promises must follow them throughout all of their

iterations (i.e. their commitments must be upheld regardless of changing circumstances and do not end when a new government comes into power, unless the First Nation(s) involved are consulted and consent to such developments).



Finally, I made the choice not to weave in the ends of the blanket on the back side. In most circumstances, someone who is crocheting a piece, whether a blanket, piece of clothing, or another item, will weave in the ends of the strings of yarn in order to clean up the piece and hide what would be seen as 'imperfections.' I cut down the long yarn tails that were hanging from the blanket, but I chose not to weave in



the lingering ends to comment on the unfinished nature of reconciliation. By leaving the numerous ends unwoven, this blanket recognizes that a great amount of work still needs to be done to truly give effect to Aboriginal rights and title across Canada. Because the blanket is an embodiment of the governments' promises, it was important for the government 'perspective' to acknowledge this fact and give further effect to the promises made during the modern treaty-making process.

